

		<i>Dhital</i> Plaintiff has failed to show a transactional relationship giving rise to a duty to disclose. Plaintiff is given 10 days leave to amend. If Plaintiff files and amended pleading, Plaintiff is ORDERED to file a red-line and clean copy. Clerk to give notice.
8	Chandra vs. K1 Speed, Inc. 30-2024-01381781-CU-PO-CJC	Motion to Strike, or Alternatively, Tax K1 Speed-Irvine LLC's Memorandum of Costs Plaintiffs Surina Prilla Chandra and Luke Hilty's Motion to Strike Costs is GRANTED. K1 Speed-Irvine, LLC (K1 Irvine) prevailed on its motion for summary judgment, however, its codefendant, K1 Speed, Inc., remains a defendant. K1 Irvine has not demonstrated costs currently claimed were incurred only by it. (See <i>Fennessy v. DeLeuw-Cather Corp.</i> (1990) 218 Cal.App.3d 1192, 1196.) Plaintiffs to give notice.
9	Pham vs. Alarian 30-2024-01425258-CU-FR-CJC	Motion for Terminating Sanctions Striking Defendants' Answers and Entering Default Plaintiff's unopposed motion for terminating sanctions striking defendants Omar T. Alarian aka Omar Alarian, Karim Rashdan aka Mohamed Kareen Rashdan Abbelaziz Mohamed Rashdan, Alarian Gear, LLC, and Raw Alarian, LLC's answers to plaintiff's complaint and entering their default for failure to comply with order entered 5/4/2026 regarding defendants' responses to plaintiff's discovery and for further monetary sanctions in the amount of \$2460 is GRANTED in part. The court ORDERS the answer of defendant Omar T. Alarian aka Omar Alarian (ROA 33) STRICKEN and enters DEFAULT of this defendant. The court ORDERS the answer of defendant Mohamed Kareem Rashdan Mohamed aka Karim Rashdan (ROA 30) STRICKEN and enters DEFAULT of this defendant. The court DENIES the request for further monetary sanctions. Defendants Alarian Gear, LLC and Raw Alarian, LLC were defaulted on 4/30/2026. All defendants are now in default.

		OSC re dismissal (default prove-up) is scheduled for 10/8/2026 at 1:30 PM. If default papers have not been filed, plaintiff's counsel is ORDERED to file a status report 5 days prior to the hearing. Trial scheduled for 1/29/2027 is VACATED. Clerk to give notice.
10	Nichols vs. Sazegar 30-2026- 01555761-CU- OR-CJC	Motion to Expunge Lis Pendens Defendant Maria Olmos's motion to expunge the lis pendens recorded against real property located at 906 W. Alton Avenue, Santa Ana, CA ("Alton Property") is DENIED. Plaintiff Bond Nichols's Request for Judicial Notice (RJN) of Exhibits 1-10 is GRANTED. "The only substantive grounds upon which a lis pendens can be expunged is if the underlying action does not contain a real property claim (§ 405.31) or the real property claim lacks probable validity (§ 405.32)." (<i>J&A Mash & Barrel, LLC v. Superior Ct. of Fresno Cnty.</i> (2022) 74 Cal.App.5th 1, 22 (<i>J&A</i>); Code Civ. Proc., §§ 405.31, 405.32) " 'Probable validity,' with respect to a real property claim, means that it is more likely than not that the claimant will obtain a judgment against the defendant on the claim." (Code Civ. Proc., § 405.3.) "[S]ection 405.30 explicitly places the burden of proving the probable validity of the real property claim on [] the claimant." (<i>J&A, supra</i>, 74 Cal.App.5th at p. 33.) Here, the Complaint alleges a single cause of action for Fraudulent Transfer pursuant to Civil Code section 3439, et seq. A fraudulent conveyance action seeking avoidance of a transfer affects title to, or the right to possession of real property and is therefore a real property claim for the purposes of the lis pendens statutes. (<i>Kirkeby v. Sup. Ct.</i> (2004) 33 Cal.4th 642, 649.) Plaintiff has also sufficiently established the probable validity of his claim based on the evidence showing the creation of Pollywood Development, LLC ("Pollywood") after Plaintiff filed a complaint against defendant David Sazegar in May 2020, acquisition of the Alton Property in the name of Sazegar's entity Pollywood, the subsequent transfer less than a year later from Pollywood to Olmos, and the recordation of the Interspousal Grant Deed all after Plaintiff initiated the 2020 Action against Sazegar. Further, the acquiring of a \$750,000 loan from Citadel Servicing Corporation dba Acra Lending secured against